

**BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS AND
THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS**

STATE OF COLORADO

Case Nos. 2017-970 & 2017-971

STIPULATION AND FINAL AGENCY ORDER

**IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSES TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO AND ADDICTION
COUNSELING IN THE STATE OF COLORADO OF JOSEPH STANLEY, LICENSE NOS. LPC
12321, LAC 397,**

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners and the State Board of Addiction Counselor Examiners (together, "Boards") and Joseph Stanley ("Respondent"), as follows:

- 1. The Boards have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").**
- 2. Respondent was licensed to practice as a professional counselor ("LPC") and an addiction counselor ("LAC") in in the State of Colorado at all times relevant herein.**
- 3. This Order is a full and final resolution of case numbers 2017-970 and 2017-971. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.**
- 4. Respondent admits the following:**
 - a. On or around February 14, 2017, Respondent pled guilty to DWAI, a misdemeanor, in Case No. 2016T10308, in County Court, Jefferson County, Colorado.**
 - b. On or about April 14 and July 10, 2017, the Boards issued Respondent an Order Pursuant to Section 12-43-224(2)(d), C.R.S. for a mental status evaluation.**

c. On or about August 30, 2017, Respondent submitted to an evaluation, and the evaluator recommended that Respondent continue individual counseling and receive supervision from a practice monitor.

5. By virtue of the admission in paragraph 4 above, Respondent admits and the Boards find that Respondent violated §12-43-222(1)(e), C.R.S., which states:

§12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article violates this article if the person:

(e) Habitually or excessively uses or abuses alcohol, a habit-forming drug, or a controlled substance, as defined in section 18-18-102(5), C.R.S.

PROBATION

6. Respondent's licenses to practice professional counseling and addiction counseling in the State of Colorado are hereby placed on probation for one (1) year commencing from the effective date of this Order, or the date Respondent's therapist and practice monitor are approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

7. The period of probation is tolled during any time that Respondent is not practicing in this state, and the period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

8. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a LPC and LAC in Colorado, is being monitored by a therapist and practice monitor as noted below, and is in full compliance with all terms of this Order.

9. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Boards, and Respondent is responsible for establishing, to the satisfaction of the Boards, that he has satisfied all terms and conditions of probation.

PSYCHOTHERAPY

10. During the term of probation, Respondent shall undergo psychotherapy with a mental health provider approved by the Boards ("therapist"). Within 30 days of the effective date of this Order, Respondent shall submit, in writing, up to three (3) proposed therapists for the Boards' approval. Respondent shall include a program-approved therapist application from each potential therapist, with attached curriculum vita or resume. The therapist shall meet the following criteria:

- a. The therapist shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the therapist have a minimum of five (5) years of experience and has not been subject to professional discipline;
- c. The therapist shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

11. Respondent must have a therapy monitor approved by the Boards within two (2) months of the effective date of this Order. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until a monitor is approved unless an extension is granted by the Boards. After the Boards' written approval of the therapist, Respondent and the therapist shall enter into a written contract for psychotherapy within 30 days. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until the written contract for therapy monitoring is executed unless an extension is granted by the Boards.

12. The therapist shall conduct therapy and report to the Boards in writing as follows:

- a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once each month, unless otherwise approved by the Boards based on recommendations of the therapist;
- b. The therapist shall report to the Boards in writing both the progress of the psychotherapy and whether Respondent is able to practice with reasonable skill and safety for his clients, and must send a copy of each report to Respondent. The therapist shall submit his/her first report by the fifth day of the month following the first month of the psychotherapy. The therapist shall submit subsequent reports by the fifth day of every

third month (i.e., on a quarterly basis) until the therapy is completed;
and

c. In the first report, the therapist shall state that s/he has received and read a copy of this Order, the Boards' file, and the therapy evaluator's report, and must state that s/he understands and agrees to the duties and responsibilities s/he is undertaking as Respondent's therapist.

13. If, at any time, the therapist is of the opinion that Respondent is practicing professional counseling and addiction counseling in a manner that does not meet the generally accepted standards of practice or has a condition that renders him unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his care, the therapist shall report such opinion and the reasons for that opinion to the Boards. The therapist shall make that report, in writing, within 48 hours of forming his/her opinion. The therapist shall send a copy of such report to Respondent when s/he sends the report to the Boards. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling and addiction counseling.

14. Either Respondent or his therapist may terminate the therapeutic relationship upon written notice to the other and the Boards no less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event Respondent does not have another Board-approved therapist prior to the termination, Respondent shall cease the practice of professional and addiction counseling until he has another Board-approved therapist in place unless an extension is granted by the Boards. The subsequent therapist shall conduct therapy with Respondent and report to the Boards in accordance with this Order.

15. Respondent cannot practice professional or addiction counseling during the period of probation if he is not undergoing therapy in accordance with this Order, unless otherwise provided by the Boards based on the recommendations of the therapist.

PRACTICE MONITOR

16. During the term of probation, Respondent's practice shall be monitored by a practice monitor. If the Boards have not already approved Respondent's practice monitor, Respondent must follow the same steps as outlined in paragraph 10 above in order to secure a practice monitor.

17. Respondent must have a practice monitor approved by the Boards within two (2) months of the effective date of this Order. If this requirement is not satisfied,

Respondent must cease practice and agrees to suspension of his practice until a practice monitor is approved unless an extension is granted by the Boards.

18. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring within 30 days. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until the written contract for practice monitoring is executed unless an extension is granted by the Boards. The practice monitor shall provide a copy of the written contract to the Boards as a part of his/her first report to the Boards. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and the practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

19. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

20. Should the Boards determine from the practice monitor's evaluation that Respondent cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Boards determine, based on the evaluation, he is not qualified, competent, or safe to conduct. Based on the Boards' findings and the evaluation, the Boards will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Boards find Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Boards that he is qualified, competent, and safe to fully practice, Respondent may resume full practice.

21. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one (1) hour, or such longer time as the practice monitor deems necessary, for every twenty (20) hours of client contact, but at least once each month. Respondent and his practice monitor must review and discuss each of Respondent's

active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing professional counseling and addiction counseling in accordance with generally accepted standards of practice and with skill and safety for his clients.

22. The practice monitor shall submit a written report to the Boards on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the remainder of the probationary period.

23. If at any time the Boards have questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Boards' concerns. The Boards will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at a Board meeting.

24. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to his clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Boards, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling and addiction counseling.

25. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Boards. If, in the Boards' judgment, the practice monitor fails to perform the function specified by this Order, the Boards may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Boards within 30 days.

26. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Boards not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct his/her monitoring and report to the Boards in accordance with this Order.

ABSTINENCE FROM ADDICTIVE SUBSTANCES

27. During the period of probation, Respondent shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed, or prescribed by an authorized person other

than Respondent. Respondent shall use such habit-forming drug, controlled substance only as directed by such authorized person and only for the condition identified by such authorized person.

28. Respondent agrees to random urinalysis and breathalyzer testing to be monitored and administered by a Board-approved independent agency to insure compliance with this Order. Urinalysis and breathalyzer testing shall be on randomly-selected days on a weekly basis for the first three (3) months of probation, then two (2) times each month until the probationary period is complete. Respondent shall sign a release and/or execute any necessary waivers to ensure that the Board-approved agency may report on his progress and compliance with this Order to the Boards.

TERMS AND CONDITIONS

29. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

30. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

31. All expenses incurred or associated with psychotherapy, the practice evaluation, practice monitoring, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

32. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

33. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

34. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

35. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

36. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

37. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

38. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

39. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

40. This Order shall be a public record in the custody of the Boards.

41. This Order shall be admissible as evidence at any hearing held before the Boards.

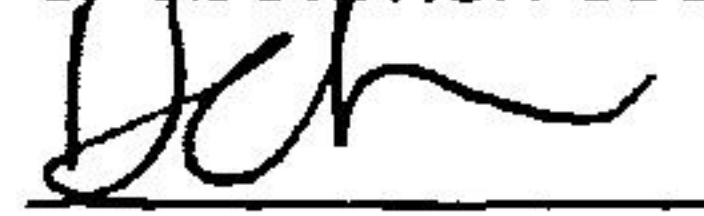
AGREED TO AND ACCEPTED BY:

RESPONDENT


JOSEPH STANLEY
LPC 12321
LAC 397

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS AND STATE BOARD
OF ADDICTION COUNSELOR EXAMINERS


DARCIE MAGNUSON
Program Director

Effective this 22nd day of June,
2018.